

HOUSE BILL 1875

By Martin G

AN ACT to amend Tennessee Code Annotated, Title 48
and Title 66, relative to electric vehicle charging
stations.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Title 66, Chapter 27, Part 4, is amended by
adding the following as a new section:

(a) An association shall not prohibit, including through the association's declaration or rules and regulations, a unit owner from installing an electric vehicle charging station for the unit owner's personal use on property owned by the unit owner, including the owner's designated parking location. An association may establish reasonable restrictions concerning the number, size, placement, and manner of placement or installation of the electric vehicle charging station on the exterior of property owned by the unit owner.

(b) An association may prohibit or restrict the installation of electric vehicle charging stations on a common element within the development served by the association and may establish reasonable restrictions as to the number, size, placement, and manner of placement or installation of electric vehicle charging stations on the common element; provided, that if a unit owner's designated parking location is within a common element of the development, the association shall not prohibit the installation of an electric vehicle charging station in the unit owner's designated parking location.

(c) A unit owner installing an electric vehicle charging station shall indemnify and hold the association harmless from all liability, including reasonable attorney's fees incurred by the association resulting from a claim, arising out of the installation,

maintenance, operation, or use of such electric charging station. An association may require the unit owner to obtain and maintain insurance covering claims and defenses of claims related to the installation, maintenance, operation, or use of the electric vehicle charging station and require the association to be included as a named insured on such policy.

(d) An association is not responsible for the maintenance of an electric vehicle charging station installed by a unit owner or an electric vehicle for which the electric vehicle charging station is used.

SECTION 2. Tennessee Code Annotated, Title 66, Chapter 27, is amended by adding the following as a new part:

66-27-901. Part definitions.

As used in this part:

(1) "Declaration" means an instrument, however denominated, that creates a homeowners' association, and amendments to that instrument, including restrictive covenants, bylaws, and similar instruments governing the administration or operation of a homeowners' association;

(2) "Homeowners' association" means an incorporated or unincorporated association owned by, or whose members consist primarily of, the owners of the residential property covered by the declaration and through which the owners, or the board of directors or similar governing body, manage or regulate the residential subdivision;

(3) "Prohibit" includes a prohibition set forth in the homeowners' association's declaration or rules and regulations; and

(4) "Rules and regulations" means written policies, resolutions, guidelines, restrictions, and procedures of a homeowners' association, however

denominated, which are not set forth in the declaration and which govern the conduct of persons or the use or appearance of property.

66-27-902. Electric vehicle chargers.

(a) A homeowners' association shall not prohibit a property owner from installing an electric vehicle charging station for the property owner's personal use on the property owner's property, including the property owner's designated parking location. A homeowners' association may establish reasonable restrictions concerning the number, size, placement, and manner of placement or installation of such electric vehicle charging station on the exterior of the property owner's property.

(b) A homeowners' association may prohibit or restrict the installation of electric vehicle charging stations in common areas maintained by the homeowners' association within the area served by the homeowners' association and may establish reasonable restrictions as to the number, size, placement, and manner of placement or installation of electric vehicle charging stations in the common area; provided, that if a property owner's designated parking location is within a common area maintained by the homeowners' association, the association shall not prohibit the installation of an electric vehicle charging station in the property owner's designated parking location.

(c) A property owner installing an electric vehicle charging station shall indemnify and hold the homeowners' association harmless from all liability, including reasonable attorney's fees incurred by the association resulting from a claim, arising out of the installation, maintenance, operation, or use of such electric charging station. A homeowners' association may require the property owner to obtain and maintain insurance covering claims and defenses of claims related to the installation, maintenance, operation, or use of the electric vehicle charging station and require the homeowners' association to be included as a named insured on such policy.

(d) A homeowners' association is not responsible for the maintenance of an electric vehicle charging station installed by a property owner or an electric vehicle for which the electric vehicle charging station is used.

SECTION 3. This act takes effect July 1, 2026, the public welfare requiring it, and applies to actions taken, and declarations entered into, renewed, or amended, on or after that date.